

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MATTHEW PIERCE

Plaintiff(s)

Venue: Queens County based upon the acts
and omissions having occurred in Queens
County

-against-

Index No.:

CITY OF NEW YORK AND
DETECTIVE CHARLIE HARVELL

Defendant(s)

SUMMONS IN A CIVIL ACTION

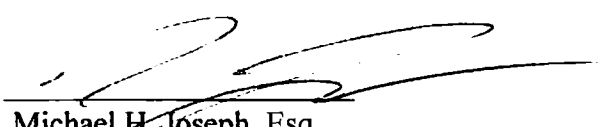
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 12, 2024

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY: 

Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
Tel: 212-858-0503
Email: michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MATTHEW PIERCE

Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK AND
DETECTIVE CHARLIE HARVELL

Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through his undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for his complaint against Defendants states:

1. At all relevant times herein, plaintiff, Matthew Pierce was and is a resident of the State of New York, County of Queens
2. At all relevant times herein, City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all relevant times herein, Defendant Detective Charlie Harvell was and is a resident of the State of New York, County of Queens.
4. On or about April 27, 2023 and at all times relevant herein, Detective Charlie Harvell was a duly sworn police officer employed by the City of New York.
5. On or about April 27, 2023 and at all times relevant herein, Detective Charlie Harvell was acting under the color of law and acting in the course and scope of his employment with City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

6. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
7. On or about April 27, 2023 at approximately 4:10 p.m., Plaintiff was lawfully present at the Queens County Family Court, located at 151-20 Jamaica Ave, Queens, NY 11432 and on the aforesaid date, time and place, Plaintiff was arrested by Defendant Charlie Harvell for criminal contempt, based upon an accusation that he violated an order of protection, when there was no order of protection in effect.
8. At the aforesaid date, time, and place, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
9. At the aforementioned time, date, and place, Defendant City of New York, by and through its employees and agents, including but not limited to Detective Charlie Harvell, unlawfully seized, searched, and falsely arrested Plaintiff for criminal contempt.
10. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that Plaintiff was arrested for criminal contempt, based upon an allegation that he violated an order of protection, when there was no order of protection in effect and the lack of an order of protection was easily verifiable by the defendants and even a minimal check as to whether there was an order of protection would have vitiated probable cause.
11. Defendants arrested, confined and caused Plaintiff to deprived of his freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
12. Defendant Detective Charlie Harvell's actions violated clearly established rights.

13. No reasonable officer in the position of Detective Charlie Harvell, would have believed the actions of the Defendants herein were objectively reasonable.
14. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.
15. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
16. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
17. The City of New York is vicariously liable for the acts and omissions of Detective Charlie Harvell complained of herein, all of which were committed in the course and scope of employment based upon respondeat superior.
18. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

19. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
20. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not

limited to his rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.

21. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
22. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
24. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling him to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

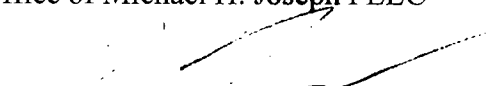
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.
February 12, 2024

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY:


Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
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SUPREME COURT OF THE STATE OF NEW YORK
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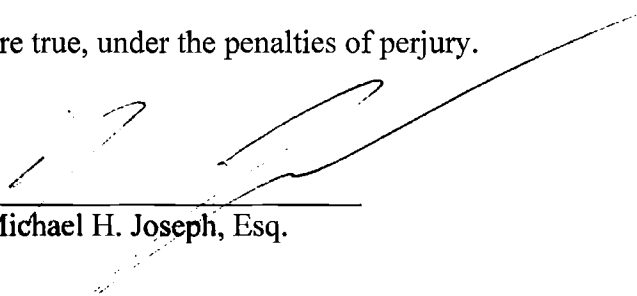
VERIFICATION

I, Michael H. Joseph, Esq., the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
February 12, 2024



Michael H. Joseph, Esq.